

The Court supports its assertion that we have previously extended qualified immunity to officials who are alleged to have violated the Fourth Amendment, *ante*, at 643, by reference to two cases: *Malley v. Briggs*, 475 U. S. 335 (1986), which involved a search pursuant to a warrant, and *Mitchell v. Forsyth*, 472 U. S. 511 (1985), in which the plaintiff relied on a rule of law that was not clearly established at the time of the alleged wrong. Neither of these cases supports the proposition that a warrantless search should be evaluated under a standard less strict than the constitutional standard of reasonableness.¹⁹ Despite its protestations to the contrary, the Court makes new law today.

The argument that police officers need special immunity to encourage them to take vigorous enforcement action when they are uncertain about their right to make a forcible entry into a private home has already been accepted in our jurisprudence. We have held that the police act reasonably in entering a house when they have probable cause to believe a fugitive is in the house and exigent circumstances make it impracticable to obtain a warrant. This interpretation of the Fourth Amendment allows room for police intrusion, without a warrant, on the privacy of even innocent citizens. In *Pier-son v. Ray*, 386 U. S., at 555, we held that police officers would not be liable in an action brought under 42 U. S. C. §1983 "if they acted in good faith and with probable cause" We explained: "Under the prevailing view in this country a peace officer who arrests someone with probable cause is not liable for false arrest simply because the inno-

¹⁹ "The good-faith exception for searches conducted pursuant to warrants is not intended to signal our unwillingness strictly to enforce the requirements of the Fourth Amendment, and we do not believe that it will have this effect. As we have already suggested, the good-faith exception, turning as it does on objective reasonableness, should not be difficult to apply in practice. When officers have acted pursuant to a warrant, the prosecution should ordinarily be able to establish objective good faith without a substantial expenditure of judicial time." *United States v. Leon*, 468 U. S. 897, 924 (1984).